

HOUSE No. 3487

The Commonwealth of Massachusetts

PRESENTED BY:

Carole A. Fiola

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing a special commission to investigate double utility poles.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Carole A. Fiola</i>	<i>6th Bristol</i>	<i>1/16/2025</i>
<i>Homar Gómez</i>	<i>2nd Hampshire</i>	<i>3/10/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>3/20/2025</i>
<i>Jacob R. Oliveira</i>	<i>Hampden, Hampshire and Worcester</i>	<i>2/6/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>1/25/2025</i>

HOUSE No. 3487

By Representative Fiola of Fall River, a petition (accompanied by bill, House, No. 3487) of Carole A. Fiola and others for legislation to establish a special commission (including members of the General Court) to investigate double utility poles. Telecommunications, Utilities and Energy.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing a special commission to investigate double utility poles.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding any general or special law to the contrary, there shall be a
2 special commission to investigate and study the use of so-called double poles. The commission
3 shall consider identifying how many double poles exist and the length of time each has been in
4 place, the reason why such double poles have been in place for such time, and the process and
5 timeline by which existing utility poles are removed following the transfer of attached services to
6 a new pole. The commission shall also consider and may make recommendations on how best to
7 enforce the provisions of Section 34B of Chapter 164 of the General Laws concerning the timely
8 removal of double poles, investigate whether the current timeline for removing such poles is
9 reasonable and adequate, investigate how to address barriers to remove such poles, investigate
10 increasing utilization, improving functionality of attachment management systems (e.g., the
11 National Joint Utilities Notification System (NJUNS), and identifying solutions to resolve
12 communication issues among all parties, unlicensed attachments on utility poles and

requirements that providers promptly register such attachments, the legal liability and potential use of indemnification agreements to facilitate the removal of abandoned attachments, whether or not certain costs may be recovered from ratepayers, and the promulgation of regulations by the Department of Public Utilities and Department of Telecommunications and Cable to effectively regulate double utility poles.

The commission shall consist of 17 members: 1 of whom shall be the secretary of administration and finance, or the secretary's designee; 1 of whom shall be the chair of the department of public utilities, or the chair's designee; 1 of whom shall be the commissioner of the department of telecommunications and cable, or the commissioner's designee; 1 of whom shall be a representative of a municipal light board of commissioners or their designee; the house and senate chairs of the joint committee on municipalities and regional government; 2 members of the house of representatives, 1 of whom shall be appointed by the minority leader; 2 members of the senate, 1 of whom shall be appointed by the minority leader; 3 municipal officials selected by the governor, 1 utility pole owner; 1 utility pole attacher; the executive director of the Massachusetts Municipal Association or their designee; and 1 private citizen, appointed by the governor, who shall serve as chair of the commission and shall not be an employee of any electric or telecommunications utility operating in the commonwealth.

The commission shall file a report of its recommendations and proposed legislation, if any, with the clerks of the house and senate, the chairs of the house and senate committee on ways and means and the chairs of the joint committee on municipalities and regional government not later than June 30, 2026.